

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 22, 2025

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Dr. Kathy Emmons, Ken Esquibel, Pete Laybourn, Mark Moody, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Dr. Aldrich moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 8, 2025. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for Apple Colorado, LLC, d/b/a Applebee's Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, WY (license currently held by AB Cheyenne, WY, LLC d/b/a Applebee's Neighborhood Grill & Bar). Public comment was made by: Brain Call, Area Director for Applebee's and Brian Proffitt, representative for Apple Colorado LLC. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Esquibel. There being no further comments or input and the purpose of the public hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Creating Section 10.24.200, Vehicle Mufflers, Excessive Smoke and Unreasonable Noise, and repealing Section 8.56.050, Motor Vehicle Mufflers, of the Municipal Code of the City of Cheyenne, Wyoming, to revise and enhance provisions governing vehicle mufflers and noise, to establish a graduated penalty structure for recurring offenses, and to make conforming amendments as specified. Reporting for Public Services Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. White. Dr. Aldrich moved to amend Section 10.24.200 to add a subsection H, which includes a review of data after one year, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Dr. Aldrich moved to amend Section 10.24.200 subsection H to include a review period of not later than October 31, 2026, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as twice amended carried. Voting “yes” – all members of the governing body. Public comments were made by: Phillip Boling, Andrew Aragon, Nick Dodson, Aaron Simoni, Chris Shaw, Susann Robins, Cheyenne Cruise Nights, Nancy Sundin, Arianna

Simoni, Lee Filer, Alan Sheldon, Stephen Jacobson, Jacob Nordmark, Ashton Doty, Ryan Blue, Joseph McCord and Bartimaeus Smith. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Mr. Esquibel, Mr. Laybourn, Mr. Moody, Dr. Rinne and Mr. Segrave. (#4643)

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in eastern Cheyenne, generally located south of Dell Range Boulevard, west of Dry Creek, east of North College Drive, and north of Cheyenne Street. Mr. Segrave moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Dr. Aldrich.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classifications of: AR - Agricultural Residential; MR - Medium-Density Residential; MUR - Mixed-Use Residential and, MUB - Mixed-Use Business, for land annexed to the City of Cheyenne generally located south of Dell Range Boulevard, west of Dry Creek, east of North College Drive, and north of Cheyenne Street. Mr. Segrave moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending Section 2.2.8, Assigned Zoning, of the Cheyenne Unified Development Code to conform with the comprehensive revision of Laramie County Zoning Regulations – referred to Public Services Committee. (Sponsor – Mr. Segrave)

ORDINANCE –1st READING – Amending Section 8.60.050, Weeds as a Nuisance, of the Municipal Code of the City of Cheyenne, Wyoming, to revise and clarify provisions and specify conditions under which vegetation does not constitute a nuisance – referred to Public Services Committee. (Sponsor – Dr. Aldrich)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification from P - Public and MUB Mixed-Use Business Emphasis to CBD Central Business District for land located between O’Neil Avenue and Carey Avenue, north of West 19th Street and south of West 22nd Street – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Amending Resolution No. 5545, requiring the submission of an updated five-year Capital Improvement Plan and establishing a three-year review and update cycle for the plan thereafter. Motion (per Consent Agenda) carried. (#6486)

RESOLUTION – Re-appropriating the Fiscal Year 2025 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Reporting for Finance Committee, Mr. Laybourn moved to adopt, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Moody voting “no”. Comment was made by the following member of the governing body: Dr. Aldrich. (#6487)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current City limits situate in east Cheyenne generally located south of Laramie Street, east of T-Bird Drive, north of East Lincolnway and US 30, and west of Parsons Place. Motion (per Consent Agenda) carried. (#6488)

RESOLUTION – Directing staff to let bids for striping parking spaces and painting curbs in the Downtown area. Mr. Laybourn moved to adopt, seconded by Mr. Moody. Motion failed due to a tie vote. Voting “yes” – Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, Mr. Moody and Mr. White. Voting “no” – Mayor Collins, Dr. Emmons, Dr. Rinne, Mr. Roybal and Mr. Segrave. Public comments were made by: Rob Dickerson and Corey Loghry. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Laybourn, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White.

[CA] RESOLUTION – Directing the Planning Department to review the Unified Development Code and provide a recommendation to the Governing Body regarding the allowance of a greater variety of trees and smaller tree sizes in new residential developments – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Esquibel, Mr. Moody, Mr. Roybal and Mr. White)

[CA] Lease agreement to allow Union Telephone Company to utilize the Parks Division Maintenance Shop to maintain a roof mount communications system to conduct telecommunications operations (Revenue to the City). Motion (per Consent Agenda) carried. (#8253)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County to provide services to the Laramie County Juvenile Crisis Shelter (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$91,237.00). (#8254)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County to provide probation/diversion services to youth appearing in both the Laramie County Circuit Court and the Municipal Court for the City of Cheyenne (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$82,194.00). (#8255)

[CA] Drainage Easement Agreement between the City of Cheyenne and Microsoft Corporation for maintenance of a storm water detention pond. Motion (per Consent Agenda) carried. (#8256)

[CA] Professional Services Agreement between the City of Cheyenne and Plan One Architects, for the Municipal Building Renovation Design project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #8035 between the City of Cheyenne, Office of Youth Alternatives and Cheyenne Regional Medical Center (CRMC) for suicidal/homicidal ideation services to youth in Laramie County (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$98,458.00). (#8257)

[CA] Consideration of Bid #S-1-26 for an Agreement between the City of Cheyenne and Construction Specialists, Inc., for the High Plains Arboretum - Headhouse Roofing Replacement

project (Wyoming State Parks and Cultural Resources – Arboretum Grant). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$245,700.00). (#8258)

[CA] Consideration of Bid #S-23-25 for an Agreement between the City of Cheyenne and S&L Industrial LLC, for the 2025 Thermoplastic Markings project (2023-2026 Optional 1% Sales Tax Fund and 2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$438,060.00). (#8259)

[CA] Consideration to Purchase between the City of Cheyenne, and KONE, Inc., for the George Cox Parking Facility Elevator Modernization (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-2-26 for an Agreement between the City of Cheyenne and Richardson Construction, Inc., for the Depot Renovation Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Request to extend the time period in which 1734 Partners, LLC d/b/a 1734 Partners has to become operational for an additional year for their retail liquor license, located at 1734 Meadowland Dr. Motion (per Consent Agenda) carried.

[CA] Application for a bar & grill liquor license filed with the City Clerk's Office for Rich Rich Up LLC d/b/a Wasabi Japanese Steakhouse, 4620 Grandview Ave. #205. Motion (per Consent Agenda) carried.

Reappointment of Jennifer Godonis to the Cheyenne Housing Authority. Dr. Aldrich moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held on October 13, 2025, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to receive comments and input for the Bell Building Urban Renewal Plan and Project as required by Wyoming Statute §15-9-109.

Announcement was made that a Calcutta benefitting Special Olympics will be held on October 24 - October 26, 2025 at VFW #1881, 2816 E. 7th Street, Cheyenne, WY (10% of proceeds go to the charity).

Public comment was made by the following under Other Business: Denise Patton.

The following members of the governing body made comments under Other Business: Mr. Moody, Mr. Roybal and Mr. Segrave.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:35 p.m.

Submitted by,

Kylie Soden,
City Clerk

This notice is available in alternative, accessible formats upon request.

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